

March 24, 2020

Khalid Akhter

Bengaluru

Subject: Offer of Employment

Dear Khalid,

On behalf of GyanSys Infotech Private Limited (the "Employer"), I am pleased to confirm our offer of employment to you as **Lead Consultant** based in **Bengaluru**.

We extend this offer, and the opportunity it represents, with great confidence in your abilities. You have made a very favorable impression with everyone you met and we are excited with the prospect of you joining our organization **on April 27, 2020**.

Your immediate manager will communicate details of your role and work responsibilities in the initial weeks of your joining the Employer. As part of your annual compensation, you will receive a Total Salary of **Rs.1400000/-**. At your level, the Utilization bonus opportunity will be **10%** of your annual Salary. The details of your compensation breakdown are provided in the attached AnnexureA.

You may also receive additional benefits as are generally accorded to the employees of the Employer, subject to the applicable policies and practices of the Employer.

Your employment with us will be governed by the Terms and Conditions as detailed in Annexure B, as well as all rules, regulations, guidelines, policies and practices of the Employer, which may be amended from time to time. Accordingly, this offer is conditional upon you agreeing to make such representations under the Employer's Independence Representations requirements, as further explained in Annexure B.

This offer letter, together with the Annexures described herein, and the Non-Disclosure, Non Solicit and Code of Conduct and other policies (which you are required to sign upon joining), constitute the entire agreement between the parties with respect to the subject matter of this offer, and supersedes all other previous or contemporaneous oral or written representations, understandings or agreements relating to the subject matter of this offer between you and the Employer or its affiliates.

This letter and GyanSys Infotech Private Limited employment application are intended to be final.

Your compensation details are confidential and you may discuss it only with the undersigned in case of any clarification. It is our hope that your acceptance of our offer will be just the beginning of a mutually beneficial relationship with our organization.

Everyone you have interviewed with joins me in extending to you congratulations and warm regards. We look forward to you joining our team.

If you wish to discuss any detail of this offer, please feel free to contact us.

Sincerely,

For **GyanSys Infotech Private Limited**

Vijaya Gupta
Manager- HR

ACCEPTANCE OF OFFER OF EMPLOYMENT

I, **Khalid Akhter**, hereby accept the terms and conditions of this employment offer. I will furnish all the documents for your records and will ensure to join on the given date of joining. I also hereby accept the documents submitted by me are true and correct.

Khalid Akhter

Signature

Name: Khalid Akhter

Date: 03/29/2020

Place: C.V Raman Nagar, Bengaluru

ANNEXURE A

	Component	Basis	Annual	monthly
A	Fixed Cash Salary			
	Basic Salary	40% of A	₹ 504000	₹ 42000
	HRA	50% OF Basic Salary	₹ 252000	₹ 21000
	LTA (optional)	Rs 4000 per month	₹ 48000	₹ 4000
	Communication Allowance	Rs 3000 per month	₹ 36000	₹ 3000
	Children Education & Hostel	Rs 1000 per month	₹ 12000	₹ 1000
	Uniform Allowance	Rs 1600 per month	₹ 19200	₹ 1600
	Special Allowance #	Balance	₹ 263078	₹ 21923
	Total (A)		₹ 1134278	₹ 94523
B	Fixed Non- Cash Salary			
	Medical Insurance	-	₹ 5000	₹ 417
	Food Allowance (optional)	Rs.36,000	₹ 36000	₹ 3000
	Employer Provident Fund	As per PF Act	₹ 60480	₹ 5040
	Gratuity	As per Gratuity Act	₹ 24242	₹ 2020
	Total (B)		₹ 125722	₹ 10477
C	Fixed Salary C = (A+B)		₹ 1260000	₹ 105000
D	Variable Salary			
	Utilization Bonus payable quarterly	10% of CTC Variable	₹ 140000	₹ 11667
	Variable Salary		₹ 140000	₹ 11667
E	Total CTC (E=C+D)		₹1400000	₹ 116667

Utilization Bonus*

You will be eligible for a performance linked quarterly paid Utilization bonus. The Utilization Bonus will vary, primarily based on your performance and billing from the project in the given quarter. Utilization Bonus is set at 10% of your CTC . The actual paid amount will vary depending upon the individual performance and billing, and in some circumstances, could exceed the pay-out range indicated. To be eligible for any bonus pay-out, you must be an active employee on the payment date and not working through a notice period or a Performance Improvement Plan (PIP). The application and interpretation of, and any determinations related to, the Utilization Bonus is at the sole discretion of Employer. Employer may amend or terminate the Utilization Bonus at any time.

Registered Office: D NO 1-1-537/A Gandhi Nagar, Hyderabad, Telangana-500080, CIN: U72200TG2006PTC050903.

Corporate Office: 8th Floor, Inventor Building, ITPL, Whitefield Main Road, Bangalore 560066

www.gyansys.com

Utilization Bonus calculation

If your utilization is 450 hours in the given quarter, you will be paid 100% of the quarterly utilization bonus. If your utilization is less than 450 hours in the given quarter, you will be paid on pro rata basis of the quarterly utilization bonus for the billable and approved hours by the Customers. If you are billed more than 450 hours in the given quarter you will be paid 100% of the quarterly utilization bonus, for additional hours billed above 450 hours you will be paid Rs 500 per hour.

Utilization Bonus Payout

Quarter	Payout Month
January - March	May
April - June	August
July - September	November
October - December	February

Details of Annexure A

HRA:

House Rent Allowance is calculated at 50% of Basic Salary. The taxability will be as per prevailing Income Tax Act.

Employer Provident Fund Contribution:

GyanSys Provident Fund Contribution is calculated as per Employees' Provident Fund and Miscellaneous Provisions Act, 1952 and other applicable Provident Fund Rules. Taxability of this component is based on prevailing Income Tax Rules.

LTA (Optional):

If you choose to avail the tax benefit on LTA, you should submit proof of expenses incurred by you for Self and / your immediate dependents. The taxability or otherwise of LTA will be as per the Income Tax Act 1961, details of which will form part of the LTA Form. You will also have the option to opt out from LTA in such a situation the given amount will be considered into the Special Allowance component.

Food Allowance:

As part of Food Allowance, you will be issued with Food Card. The said and for the first month (For New Hires) prorated amount will be processed as part of payroll. Food Card will get credited on monthly basis for the given amount. You will also have the option to opt out from Food Allowance in such a situation the given amount will be considered into the Special Allowance component.

Communication Allowance:

An allowance of ₹ 3000 per month is payable on a monthly basis.(₹ 36000/- per annum). Tax benefits will be available as per the prevailing Income Tax Rules on submission of proofs.

Communication Expenses can be claimed for one Post-paid mobile or one Land Phone.

Telephone/ Mobile bills should be in the name of the Employee.

Time to submit proof of documents shall be intimated time to time.

Uniform Allowance

An allowance of ₹ 1600 per month is payable on a monthly basis(₹ 19,200/- per annum). Tax benefits will be available as per the prevailing Income Tax Rules on submission of proofs. Bills for the amount spent for the purchase of business formals/ Business casuals can be submitted as proof.

Children Education & Hostel

An allowance of ₹ 1000 per month is payable on a monthly basis(₹ 12000/- per annum). Tax benefits will be available as per the prevailing Income Tax Rules on submission of proofs.

Special Allowance:

Special Allowance is the benefit provided to Employees after considering all other components in Salary.

Medical Insurance:

You will be entitled to Annual Floating Medical Insurance Coverage (Rs 3,00,000 coverage) for self is being paid by the Employer on your behalf. You will also be entitled to Round-the-clock Personal Accident Insurance Coverage(Rs5,00,000 coverage) for self. Premium paid by the Employer is included in your Total CTC. You will be eligible for Income tax benefits for such based on prevailing Income Tax Rules. You can include dependent (Spouse+2 kid and parents) by incurring extra cost.

Gratuity:

On completion of five years of continuous service with the company you will be eligible for the gratuity as per the payment of Gratuity Act. This amount will accrue to your account annually. The amount towards gratuity accrual is also a part of the above package.

Your compensation above is subject to income tax deduction per rules and guidelines prescribed under the prevailing tax laws.

Khalid Sheikh

03/29/2020

Signature

Date

General Instructions / Checklist of Documents

Dear Professional,

Congratulations and welcome aboard!!!

This checklist is to prepare you for your journey with us. The documents/material requested here are mandatory and must be carried along on your date of joining. Please carry photocopies of applicable documents as listed below.

Education		
Graduation		
Marksheets for all the years	☐	
Convocation Certificate and Provisional Certificate	☐	
Post-Graduation		
Marksheets for all the years	☐	
Convocation Certificate and Provisional Certificate	☐	
Professional [CA/CS/ICWA/etc.] *		
Marksheets for all the years	☐	
Convocation Certificate and Provisional Certificate	☐	
Membership Number allocation proof/document [if applicable]	☐	
Employment		
Relieving Letter or Service Certificate [All Prior Employment(s)]	☐	
Previous Employment Last Payslip	☐	
Last Employer Relieving letter/Service certificate	☐	
Form 16 for the Current Financial Year or the Salary Certificate*	☐	
General		
Photo copy of PAN card is mandatory & should be submitted on your day of joining**{Non-PAN card holders, please apply immediately}	☐	
Photo copy of Aadhar is mandatory & should be submitted on your day of joining.	☐	
2 Passport Size Photographs	☐	
Photo copy of the Passport*	☐	
Candidate Blood Group Information	☐	
Additional Documents - If any	☐	

* If applicable

** Very important & Critical document

We look forward to you joining us, where the BEST chooses to be.

Annexure B

Non-Disclosure, Non-Solicit and Intellectual Property Rights Assignment Agreement

This Non-Disclosure, Non-Solicit and Intellectual Property Rights Assignment Agreement ("Agreement") is effective as _____.

BY AND BETWEEN:

GyanSys Infotech Private Limited, an Employer incorporated under the provisions of the Companies Act, 1956 and having its registered office at ITPL, 8th Floor, Inventor Building, Whitefield, Bengaluru - 560066, hereinafter referred to as "Employer", (which shall be deemed to mean and include its successors and assigns); and

Full Name: _____

Address: _____

hereinafter referred to as "I" or "me" or "my" (as the context may require), (which shall be deemed to mean and include my heirs, legal representatives, executors and administrators).

1. GENERAL

We are working together to build a world-class organization. It is hence important that the atmosphere and environment we create together enhances the potential and capability of each one of us. These service conditions aim to build a strong professional work environment based on the strong foundations of integrity and ethics.

I understand that I shall always maintain absolute integrity and devotion to duty. If I hold a senior or managerial position, I shall take all possible steps to ensure the integrity and devotion to duty of all personnel within my control and authority. I understand that I shall not act in a manner that is prejudicial to the interests of, or that brings disrepute to, the Employer or its Connected Entities (as defined in Section 3 below). At all times, I shall be bound by and shall comply with the Code of Ethics and Professional Conduct of the Employer.

2. STATEMENT OF FACTS – VISIBLE PRACTICE OF INTEGRITY

I understand that the Employer's offer to employ me is made based on, among other things, the proficiency of professional skills that I have declared to possess as per my resume.

I shall not at any point in time furnish false information regarding personal details such as name, age, contact address or professional information, including, but not limited to, qualifications, ability, previous service, or any other matter germane to my employment with the Employer, at the time of employment or during employment. The employer has right to confirm the information provided by me at any time and from any source. If, later, any of my statements are found to be false or misleading, the Employer shall have the right to terminate my services forthwith.

I understand that I am expected to follow the letter and spirit of all applicable taxation laws, rules and regulations and uphold the values of honesty and integrity in all my actions. During doing so, I shall claim only actual expenses and ensure compliance with the applicable tax laws in letter and spirit.

Any enhancement of compensation and benefits will be based on my performance and would be at the discretion of the Employer. In case my performance falls short of minimum standards set by the Employer, the Employer shall have the right to terminate my employment forthwith.

3. CONFIDENTIALITY

I understand that, by my employment, I will acquire and be exposed to, have access to, make use of, create and/or add to Proprietary Information and Personally Identifiable Information ("PII", as hereinafter defined). "Proprietary Information" includes all ideas, information, and materials, tangible or intangible, not generally

known to the public, relating in any manner to the business of the Employer or a Connected Entity (as hereinafter defined), its personnel (including partners, principals, members, officers or employees), clients and prospective clients, vendors, suppliers, independent contractors, subcontractors, agents or others with whom the Employer or a Connected Entity does business that I learn or acquire during the period of my employment with the Employer.

Proprietary Information therefore includes, but is not limited to, manuals, documents, research notes, drafts, software, source code, methodologies, business processes, inventions, compilations of technical data, databases, client or prospective client lists, information relating to the development or maintenance of client relationships and good will, names of suppliers, specifications, designs, business or marketing plans, forecasts, financial information, personnel information or lists, work in progress, and other technical or business information, whether prepared by me or others for the Employer or a Connected Entity, or received by me or others for the Employer or a Connected Entity. Proprietary Information does not include basic programming or accounting know-how that is generally known and used within the software industry or accounting profession.

"PII" means information relating to an identified or identifiable natural person, excluding business contact information, that I acquire, am exposed to, have access to, or make use of about my employment with the Employer, whether in written, oral, electronic, or other form, and any copies thereof. An identifiable person is a person who can be identified, directly or indirectly, by reference to an identification number or factors specific to his or her physical, physiological, mental, economic, cultural or social identity. Examples of PII include, but are not limited to, the following: account number (bank account, credit card, etc.), address, biometric identifier, license or identification number, date of birth, government identifiers (such as social security numbers), name, personnel number, photograph or video identifiable to an individual, vehicle identifier or serial number, and may also include other information related to an individual that may directly or indirectly identify the individual (e.g. salary, performance rating, purchase history, call history, etc.).

"Connected Entity" as used in this Agreement shall mean GyanSys Infotech Pvt Ltd, India and any corporation, partnership, limited liability Employer or other entity (a) that (i) is owned, directly or indirectly, in whole or in part, by the Employer, GyanSys Inc, USA or its subsidiaries (whether located in the U.S., India or any other country)(ii) controls, is controlled by or is under common control with a GyanSys Entity; or (b) in which any partner, principal, member, officer, employee or other personnel of a GyanSys Entity participated on behalf of, or carried out any duties with respect to the affairs of a GyanSys Entity. For purposes of this Agreement, the term "control" (including the terms "controlled by" and "under common control with") means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a person or entity, whether through the ownership of voting securities, by contract, or otherwise.

I agree to hold in trust and confidence all Proprietary Information and Personally Identifiable Information during and after the period of my employment with the Employer. I will not disclose any Proprietary Information and Personally Identifiable Information to anyone outside the Employer or a Connected Entity without the prior written approval of an ***Authorized Representative*** of the Employer, or use any Proprietary Information or Personally Identifiable Information for any purpose other than for the benefit of the Employer or a Connected Entity as required by my authorized duties for the Employer. Upon termination of my employment with the Employer (a) I will not use or disclose Proprietary Information or Personally Identifiable Information, whether in documentary or digital form or committed to memory or in any other form, for any purpose; (b) I will not retain or take with me any Proprietary Information or Personally Identifiable Information in a tangible form; and (c) I will immediately deliver to the Employer any Proprietary Information and Personally Identifiable Information in a tangible form that I may then or thereafter hold or control. "Tangible" form includes written or graphic form, on a computer disc, USB drive or other medium, on a website, or otherwise stored in or available through electronic or other form.

I agree to keep confidential any information or manuals relating to the Employer's compensation and benefits schemes that may become known to me as an employee of the Employer. I agree to maintain the utmost secrecy regard to the compensation and benefits package of any other employee of the Employer or any Connected Entity that becomes known to me during employment and I shall not discuss it with any colleague, except on a need-to-know basis.

I agree that during the term of my employment with the Employer, I shall not improperly use or disclose any proprietary information or trade secrets of any former employer or other person or entity, and that I will not bring into any of the premises maintained by the Employer or a Connected Entity, or otherwise provide to the

Employer or a Connected Entity, any unpublished document or proprietary information belonging to any such employer, person or entity without the prior written authorization of such employer, person or entity. If I receive such an authorization, I will send a copy to the Authorized Signatory.

An ***Authorized Representative*** is the Manager - HR for the Employer or a Connected Entity located in India or his or her designee.

4. EXTERNAL COMMUNICATIONS

I agree that I shall not, either directly or indirectly, during or after my employment, communicate to any public papers, on internet, journals, social media, pamphlets or leaflets, or cause to be disclosed at any time, either verbally or in writing, any information or documents, official or otherwise, relating to the Employer or a Connected Entity, including, without limitation, any Proprietary Information or Personally Identifiable Information, except with the prior written approval of management of the Employer.

5. INTELLECTUAL PROPERTY RIGHTS

I hereby agree that, except with respect to Personal Works (defined below), the Employer or a Connected Entity owns all rights, title, and interest in and to all work performed, and all materials, creations, designs, technology, discoveries, inventions, ideas, information, and other tangible or intangible matter (whether or not patentable or copyrightable), conceived, developed or created by me, alone or with others, during the period of my employment with the Employer, including, but not limited to, all related copyright, trade secret, patent, trademark, and other intellectual property rights (the "Creations"). To the maximum extent permitted by applicable law, the Creations shall be deemed works made for hire under India copyright or applicable laws or any equivalent laws of applicable foreign jurisdictions, and all rights, title, and interest in and to the Creations shall vest automatically in the Employer or a Connected Entity, as determined by the Employer.

I hereby assign and irrevocably agree to assign all right, title, and interest including, but not limited to, patent, copyright, trade secret, trademark, and other proprietary rights, in and to such Creations to the Employer or a Connected Entity, as determined by the Employer (as to copyright, to the extent such Creations are held not to be works made for hire under applicable law). The Employer or a Connected Entity, as determined by the Employer, will have the sole right, in its own name, to obtain, hold, register, and otherwise perfect, protect and enforce (including bringing actions for past or future infringement of) all rights relating to the Creations, including, but not limited to, any renewals or extensions thereof.

I will (a) promptly notify the Employer in writing of any Creations, and deliver to the Employer the tangible form of all Creations (including any copies); and (b) provide the Employer and any person designated by the Employer or a Connected Entity, at the expense of the Employer or a Connected Entity, any assistance and cooperation requested by the Employer or a Connected Entity to obtain, hold, register, and otherwise perfect, protect, and enforce (including bringing actions for past or future infringement of) all rights relating to the Creations, including, but not limited to, executing written instruments and serving as a witness. If, in breach of my obligations under this Agreement, I use any Creations or Proprietary Information in conceiving, developing or creating any materials, creations, designs, technology, discoveries, inventions, ideas, information or other tangible or intangible matter after termination of my employment with the Employer, I acknowledge and agree that such tangible or intangible matter constitutes, at the sole discretion of the Employer or a Connected Entity, Creations subject to the assignment requirement, and the other terms and conditions, of this Agreement.

Only a Creation that meets all of the following criteria would be considered a personal work ("Personal Work"):
(a) it is conceived, developed, and created by me on my own time without using the equipment, supplies or

facilities of the Employer or a Connected Entity or any Proprietary Information or other Creations, (b) it is unrelated to the

actual or reasonably anticipated business or research and development of the Employer or a Connected Entity of which I am or become aware, and (c) it does not result from any work performed by me for the Employer or a Connected Entity. The obligations noted above in paragraph 5 do not apply to Personal Works.

I will not provide Employer or a Connected Entity with any Personal Works without prior written authorization of the Employer.

Any assignment of copyright hereunder includes all rights of paternity, integrity, disclosure and withdrawal and any other rights that may be known as or referred to as "moral rights" (collectively "Moral Rights"). If, despite the above, I am deemed under applicable law to retain any rights including without limitation any Moral Rights, I hereby waive, and agree to waive, all such rights. To the extent that such waivers are deemed unenforceable under applicable law, I grant, and agree to grant, to the Employer or its designees the exclusive, perpetual, irrevocable, worldwide and royalty-free license to use, modify and market such rights, without identifying me or seeking my consent. I agree that my obligation to render any cooperation for the foregoing shall continue even after termination of my relationship with the Employer.

Upon demand by the Employer, I shall immediately deliver /hand over all information/ material relating to the Creations in my possession, in a tangible form and to the satisfaction of the Employer or Connected Entities.

6. CONFLICT OF INTEREST

Any position with the Employer calls for whole time employment and I agree to devote myself exclusively to the business of the Employer.

During my period of employment, I will not directly or indirectly, participate in or in any way render services or assistance to any business, whether for compensation, or engage in any conduct which might result in, or create the appearance of using my position for private gain or other than for the benefit of the Employer or a Connected Entity, or otherwise create a conflict, or the appearance of a conflict, of interest with the Employer or a Connected Entity. Such conduct shall include, but not be limited to, having an undisclosed financial interest in any vendor or supplier of the Employer or a Connected Entity, accepting payments of any kind or gifts other than of a nominal value from vendors, clients or suppliers, or having any outside employment, having an undisclosed relationship with a family member or other individual who is employed or associated with any entity in active or potential competition with the Employer or Connected Entity, and which creates a conflict of interest. I represent and warrant that I am not currently aware of any present or past violation of this provision.

7. NON-SOLICITATION

The following non-solicitation provisions are designed to protect the investment of the Employer and all Connected Entities in their clients and employees, valid business needs in today's competitive marketplace. Nevertheless, this Agreement is not intended to limit an employee's ability to pursue a professional career upon leaving the Employer.

- a. **Non-Solicitation of Clients.** I acknowledge that, because of the nature of my work for the Employer or a Connected Entity, my solicitation or serving of certain clients related to my work for the Employer or a Connected Entity would necessarily involve the unauthorized use or disclosure of Proprietary Information of the Employer or a Connected Entity, and the proprietary relationships and goodwill of the Employer or a Connected Entity, and, in the case of my serving of certain clients, could compromise the full compliance of the Employer or any Connected Entities with the laws, rules and regulations of the U.S. or India, or independence-related requirements of a government regulatory body. Accordingly, during the period of my employment with the Employer and for one year thereafter, I will not, directly or indirectly, solicit or provide services to any client of the Employer or a Connected Entity to which I provided (or participated in a

proposal to provide) services during the two-year period prior to termination of my employment with the Employer.

In this regard, I acknowledge and agree that the market for the kinds of services I rendered or will render as part of my work for the Employer or a Connected Entity reaches throughout, and in certain instances beyond,

India and that the Proprietary Information which has been and will be provided to me relates to similar kinds of services rendered by the Employer or a Connected Entity throughout, and in certain instances beyond, India and therefore the geographic scope of this Agreement is reasonable and is designed to protect the Employer's or a Connected Entity's legitimate business interests in the preservation of Proprietary Information.

- b. Non-Solicitation of Personnel.** I acknowledge that, because of the nature of my work for the Employer or a Connected Entity, my solicitation or hiring of any partner, principal, member, officer or employee of or any contractor to the Employer or a Connected Entity, or my participation in their hiring, admission or retention, as the case may be, would necessarily involve the unauthorized use or disclosure of Proprietary Information of the Employer or a Connected Entity, and the proprietary relationships and goodwill of the Employer or a connected Entity. Accordingly, during the period of my employment with the Employer and for two year thereafter, I will not, directly or indirectly, (a) solicit or attempt to solicit, or participate in the solicitation of or any attempt to solicit any partner, principal, member, officer or employee of the Employer or a Connected Entity to leave the Employer or a Connected Entity, or to join any firm or business with which I may be or become affiliated, or (b) participate in the hiring or admission of any partner, principal, member, officer or employee of the Employer or a Connected Entity, or (c) cause a contractor of the Employer or a Connected Entity to cease providing services to, with, or on behalf of the Employer or such Connected Entity.

8. AUTHORIZATION

Only employees of the Employer holding a senior or managerial position with the Employer will be authorized by a specific power of attorney to sign legal documents, representing the Employer. Similarly, only such authorized employees of the Employer may speak about Employer, the business and plans, various client-related projects etc.

9. SECURITY

Security of Proprietary Information, Personally Identifiable Information and other data (refer to Annexure C* on Information Security Policy) are important aspects of our business and a basic expectation of our clients. In recognition of this responsibility towards our clients and business, I agree to adhere to the following conditions always:

Proprietary Information or Personally Identifiable Information is available to me on a need-to-know basis for specified groups based on my roles and responsibilities. The network file server access is permitted on an as-required basis only. Access to these is authorized through access privileges approved by designated personnel of the Employer or a Connected Entity.

Internet access is available to me for completing my work responsibilities and browsing sites of professional interest. I understand that I am expected to adhere to Employer requirements related to downloading of copyright information, security of the Employer network and office decorum.

The communication security may be maintained by controlling physical access to computer systems, disabling all workstation CD, USB Storage Pen drives or hard disks and Employer-wide communications to heighten awareness of the need for protection of intellectual property and sensitive customer information.

Access to the network, development environment and E-mail Server of the Employer or a Connected Entity is through an individual's password. In the interest of security, I agree to utilize this facility and maintain confidentiality of the same.

In the interest of security, I shall not install, download, copy or duplicate any unauthorized or unlicensed software, programs, games, attachments on any computer system of the Employer or a Connected Entity.

I am expected to be responsible for the security of official documents/ manuals and such material that may come to me during various assignments. I am provided with a worktable and lockable storage space. I will ensure they are locked when unattended and understand that a duplicate key will only be provided if I sign for it.

I am required to display my identity card to the security personnel of the Employer or a Connected Entity on demand and always within the office premises. Any equipment taken out of the office premises will require a gate pass duly authorized by the designated personnel of the Employer or a Connected Entity. * The Information Security Policy will be provided for your review and acceptance on or before the day of your joining the Employer.

10. USE OF EMPLOYER OR CONNECTED ENTITIES RESOURCES AND RETURN OF PROPERTY

I understand that I shall be responsible for the safekeeping and good condition and order of all the property of the Employer or a Connected Entity that is entrusted to my care and charge. I may use the resources of the Employer or a Connected Entity only for official purposes.

Unless otherwise agreed by the Employer in writing, upon termination of my employment for any reason, in addition to the return of Proprietary Information and Personally Identifiable Information as set forth in Paragraph 1, I agree to return to the Employer or a Connected Entity all Creations and all other property, equipment, credit cards, documents, records, lists, files, and any and all other materials of the Employer or a Connected Entity, including, without limitation, computerized or electronic information that is in my possession or control as of the date on which my employment is terminated, and all copies thereof in any form or media, created by, furnished to, obtained by or prepared by me in the course of my employment (the "Property").

The Property shall be delivered to the Employer or a Connected Entity at any location designated by the Employer or a Connected Entity, at my expense, within One (1) business day after the termination of my employment or on an alternate date designated by the Employer or a Connected Entity. I further agree to allow the Employer or any Connected Entity to inspect any of my personal or home computers to determine whether any Proprietary Information, Personally Identifiable Information or Property belonging to the Employer or a Connected Entity resides on such computers and to permit the Employer or a Connected Entity to remove such Proprietary Information, Personally Identifiable Information or Property from such computers.

11. NOTIFICATION

I agree that prior to accepting employment or affiliation with another firm or business, I will advise such firm or business of my duties and obligations under this Agreement. After my employment with the Employer ends, I agree that the Employer or a Connected Entity shall be permitted to advise any firm or business with which I have accepted an offer of employment or affiliation concerning my duties and obligations under this Agreement.

12. FUTURE COOPERATION

Upon termination of my employment for any reason, I will cooperate with the Employer or a Connected Entity in all matters relating to the completion of pending work on behalf of the Employer or a Connected Entity and the orderly transfer of work to partners, principals, members, officers or employees of the Employer or a Connected Entity. I will also cooperate fully with the Employer or a Connected Entity about any threat of or actual legal proceeding against the Employer or a Connected Entity or any client, customer or licensor of the Employer arising out of any matter with or of which I have had contact or knowledge during my employment.

13. CERTIFICATION

I agree that during the period of my employment with the Employer I will be requested, provide written certification in such form as the Employer may require that I have complied with my obligations under training & certification Agreement.

14. REMEDIES

I acknowledge and agree that a breach of this Agreement would cause irreparable harm to the Employer or a Connected Entity and that, in addition to other remedies, the Employer on behalf of itself or a Connected Entity is entitled to a temporary restraining order, an injunction or other equitable relief to prevent any such breach. I also acknowledge that, to the extent permitted by law, the Employer or a Connected Entity will be entitled to the payment of the Employer's or Connected Entity's reasonable costs and attorney's fees incurred in enforcing this Agreement.

15. APPLICABLE LAW AND JURISDICTION

Even though the Employer may depute me overseas for on-site work or to any other location in India, I irrevocably submit to the exclusive jurisdiction of any competent courts situated in Bengaluru, or if I am assigned to the Hyderabad or Bhubaneswar office, I irrevocably submit to the exclusive jurisdiction of any competent courts situated in Bangalore only, concerning any dispute arising out of my employment or relating to this Agreement, and I waive any objection to such proceedings on grounds of venue or on the grounds that the proceedings have been brought in an inconvenient forum.

16. MISCELLANEOUS PROVISIONS

The above terms and conditions are based on, and should be read in conjunction with, the Employer policies, procedures and other rules currently applicable. The above rules are subject to amendments from time to time and the amended rules, policies, procedures, guidelines would be posted on the Employer's policy portal for employee reference. All future communications would be deemed to have your prior consent. The Employee shall also abide by all other rules and regulations of the Employer as shall be in force, from time to time.

Except as set forth in the following sentence, I acknowledge and agree that this Agreement contains the entire understanding between the Employer, each Connected Entity and me with respect to the subject matter hereof and supersedes all prior representations, warranties, and agreements with respect to such subject matter. Notwithstanding the foregoing, I acknowledge and agree that any written agreement between the Employer or any Connected Entity and me with respect to the subject matter hereof that was signed by me prior to the date hereof shall remain valid and enforceable according to the terms of such agreement with respect to all acts and omissions occurring prior to the date hereof.

The rights and benefits of the Employer under this Agreement shall be transferable, and all provisions of this Agreement shall inure to the benefit of and be binding upon the respective heirs, executors, administrators, representatives, successors, and assigns of the Employer and me and shall inure to the benefit of any Connected Entity to which I may transfer during my employment with the Employer or the Connected Entity, provided, however, none of my duties or obligations under this Agreement may be assigned or transferred by me to any other person or entity without the Employer's prior written approval of such assignment or transfer. Any purported assignment in violation of this paragraph shall be null and void.

I understand that my post-employment obligations in sections 3, 4, 5, 7, 8, 11, 12, 13, 14, 15 and 16 of this Agreement will survive the termination of this Agreement. The provisions noted above explain the length of such post-employment obligations, some are limited in time and others are of unlimited duration.

For **GyanSys Infotech Pvt Ltd**

Human Resources
Authorized Signatory

I accept all the terms and conditions of the Employer as stipulated in this Agreement.

Khalid Akhter

KHALID AKHTER

Signature

Full Name

TERMS AND CONDITIONS OF SERVICE

In continuation to our offer of employment with the Employer, please note the terms and conditions of service.

We firmly believe that our strength lies in our employees as they ensure our success. Our business model is dynamic and typified by a high degree of competition. Success in such a situation demands that we continuously challenge ourselves to higher levels of individual and collective performance. Toward this, we aim to provide an enabling and positive environment that will motivate our employees and facilitate achievement of superior levels of performance.

Our employees' professional skills and knowledge are emphasized by their personal and emotional well-being. We strive to provide a climate that nurtures the holistic development of our employees.

A summary of some of the major policies applicable and the benefits available to the employees in our Employer is detailed below along with other terms and conditions of employment.

COMPLIANCE WITH GYANSYS'S INDEPENDENCE, ETHICS AND OTHER REQUIREMENTS

The Employer, as an affiliate of GyanSys Inc (GyanSys USA), is required to comply with external regulatory and/or professional standards. In accordance with the policy of GYANSYS USA, as a condition to your joining the Employer and continued employment, you are required to complete a representation regarding your understanding of, and compliance with, independence and other matters, on a periodical basis (as requested beginning on or prior to the date of you joining the Employer, annually thereafter, and upon certain changes in your role in the Employer), the details of which are provided in the Independence Representation. An example copy of this representation form is available for your reference on GyanSys Policy Portal. The representation should be made to the best of your knowledge and ability. It is your responsibility to consult on any matter should you be uncertain or have a question. You are also requested to refer to GyanSys Policy Portal and GYANSYS USA Independence Group for more information in this respect. The representations made by you will be subject to an audit and may be reviewed by GYANSYS USA's representatives and shared with certain third parties. If you are selected for such an audit, you will need to submit certain personal financial records to GYANSYS USA's internal audit team. Please be assured that GYANSYS USA fully intends to keep all information obtained through the audit process confidential and secure. You hereby give your consent to GYANSYS USA to use the information provided by you for such purposes as provided in the policies regarding independence and ethics.

In the event, you (i) do not cooperate or comply with the independence requirements, or (ii) do not complete the necessary representations, or (iii) make inaccurate representation(s); you may be subject to disciplinary action including and up to termination of employment with the Employer.

Please feel free to contact or consult us should you require any further information or if you have any specific concerns in this respect.

NON-DISCLOSURE, NON-SOLICIT AND INTELLECTUAL PROPERTY RIGHTS ASSIGNMENT AGREEMENT AND SEXUAL HARASSMENT POLICY

You will be expected to sign the Employer's Non-Disclosure, Non-Solicit and Intellectual Property Rights Assignment Agreement and the Sexual Harassment Policy upon joining the Employer. Please contact the Human Resources Department for further details.

RETIREMENT AGE

The age of retirement for every employee of the Employer is 60 years. You shall however, during the tenure of the services be required to be medically fit for work. The Employer may, at its discretion, request you to undergo periodic medical examination to enable professional determination of medical fitness for employment.

PROBATIONARY PERIOD

You will be on probation initially for a period of six months and may be confirmed as a permanent employee upon successful and satisfactory completion of your probation. During your probation, your engagement by the company is provisional and subject to, amongst other things, your positive contributions to the company's objectives. The company reserves the right either to extend your period of probation or terminate your services, if your performance is found unsatisfactory. The company reserves the right to reduce or extend your probation period based on manager's feedback. You will continue and be deemed to be on Probation until and unless confirmed by the company in writing about your performance and eligibility for regular employment.

LEAVE POLICY

You will be eligible for 15 days of paid Vacation Leave, 6 days of Sick Leave in a calendar year. From the date of joining the company, a full-time employee will earn 1.25 day Vacation Leave on the month he or she works. You will accrue sick leave at the time of joining, maximum being 6 days in calendar year.

After completion of first 3 months of service with the company, a full-time employee is eligible for paid Vacation Leave. If an employee has pre-planned for Vacation Leave then he/she must communicate at the time of joining to HR for exceptional approval.

On completion of 3 years of service in the company you can encash Vacation leave upto maximum of 30 days. Leave encashment is done only with December payroll. Request for encashment should be sent by 5th Dec to HR & Finance Team.

Please refer & follow the guidelines to understand the process for availing Leave as per the Leave Policy which is shared in the GyanSys ESS portal.

SHIFT ALLOWANCE

Full Time Employees are eligible for the Shift Allowance if they are working from GyanSys Office post 10.30pm only. The Shift Allowance is calculated at Rs 300 per day. An Employee needs to get an approval from the Account Manager, Practice Manager & Project Manager in advance and keep the HR & Finance Team pre-informed.

Please refer & follow the guidelines to understand the process for availing Shift Allowance as per the Shift Allowance Policy which is shared in the GyanSys ESS portal.

NOTICE PERIOD FOR TERMINATION OF SERVICES

During probation, your services can be terminated with 30 days' notice or basic salary in lieu thereof, on either side. After confirmation as a regular employee, in case you decide to leave the employment, you will be required to give 90 days' notice or basic salary in lieu thereof. If any of your assignment is pending or incomplete, the Company will have the discretion to relieve you only at the end of the three months' notice period. Similarly, the Company can terminate your services by giving 90 days' notice or basic salary in lieu thereof.

In the event of any breach of the code of conduct or non-performance of contractual obligation or the terms and conditions laid down in this Annexure or if you are guilty of any negligence or misconduct about or affecting the business or affairs of the Employer, your services in the Employer could be terminated without any notice or payment in lieu of notice notwithstanding any other terms and conditions stipulated herein.

Misconduct will include but is not limited to:

- Going on or abetting a strike in contravention of any law.
- Causing damage to the property of the Employer or its employees.
- Continued discharge of work functions that do not meet the standards reasonably expected from you.
- Breach of confidentiality/secret provisions set out in Annexure B.
- Wilful insubordination or disobedience, whether in combination with another, of any lawful and

reasonable instructions of any member of management.

- Engaging in outside employment or an outside business unconnected with your duties and obligations.
- Neglect of normal duties and functions.
- Disclosing to any unauthorized person any Proprietary Information or PII, as defined in Annexure B.
- Falsification / manipulation of GyanSys time & expenses in Replicon.
- Falsification / manipulation in Background Verification.
- Engaging in any illegal activities

The Employer further reserves the right to invoke other legal remedies as it deems fit to protect its legitimate interests and to claim the actual damages it has suffered through any breach.

Absence from work for a consecutive period of three days, without prior approval, including an overstay of leave, will be treated as abandonment of services and you would be subject to immediate termination.

Upon termination of your employment with the Employer, you shall forthwith return to the Employer all the assets, software, code, protocols, manuals, programs, compilations of technical data, client or prospective client lists, Work in Progress and property of the Employer (including leased property), documents, files, books, papers, memos or any other property of the Employer or Connected Entities or their respective clients in your possession or under your control.

In case of employment termination for any reason related with misconduct or repetitive bad performance, the quarterly utilization bonus and KPI Bonus (If applicable) as part of your compensation structure would not be processed as part of full & final settlement.

WORK CONDUCT

The Employer expects all employees to maintain highest standard of professional conduct always.

To assure orderly operations and provide the best possible work environment, the Employer expects you to follow rules of conduct that will protect the interests and safety of all personnel.

It is not possible to list all the forms of behaviour that are considered unacceptable in the workplace, but the following are examples of infractions of rules of conduct that may result in disciplinary action, including termination of employment:

- Irregular attendance: repeated or excessive absence, tardiness, uninformed excessive work from homes or early departures.
- Unreported absence for more than three days or unreported deviation from assigned and accepted schedule for more than five days.
- Falsification of employment records, employment information, or other records prior and after joining the Employer.
- Giving knowingly false statements, either verbally or in written form to any manager or co-employee.
- Excessive personal use of the Employer's telephone, fax or computer systems for non-business reasons.
- Practices such as having obscene posters / work station screen savers at your work place, playing games, watching movies at your workstation etc.
- Insubordination: wilful disobedience of any reasonable and legitimate instructions issued by any member of management or supervision and anyone authorized to act in such capacity, or addressing such person in an abusive, threatening or contemptuous manner in the presence of others.
- Theft, unauthorized removal or wilful damage to any property belonging to another employee, the Employer or to the Employer's customer or visitor.
- Introduction or possession of firearms, explosives, knives or any instruments that can be used as an injurious or deadly weapon on the Employer property.
- Corruption, fraud, misappropriation of funds.
- Failure to comply with the policies, guidelines, rules and regulations of the Employer.
- Any act prejudicial to or in conflict with the interests of the Employer.
- Gross negligence.

Registered Office: D NO 1-1-537/A Gandhi Nagar, Hyderabad, Telangana-500080, CIN: U72200TG2006PTC050903.

Corporate Office: 8th Floor, Inventor Building, ITPL, Whitefield Main Road, Bangalore 560066

www.gyansys.com

Khalid Sheikh

All employees conduct shall strictly adhere to the Employer's rules and regulations and amendments made to it from time to time.

TRANSFERS & TRAVEL POLICY

You are liable for transfer / deputation / secondment / training to any branch or to the offices of our associate companies, client locations or third parties in India or abroad with or without additional compensation. In such an event, you will also be governed by the terms and conditions of service applicable to the new assignment.

Employer will invest considerable time, effort and financial resources in Visa processing and overseas travel arrangements. All the expenses involved for your travel such as Travel (Return Air Fare/Cab/International Sim), Accommodation, Insurance, Per Diem, Visa Expenses (Visa Fee, Travel & Logistics claimed for Visa Interview) & any other expenses related with your travel which is not covered here (on actuals) will be governed by the rules of the Employer in force, from time to time. Employee will provide dedicated service to our client, completing the work/project assigned, and commit services to the Employer for at least twelve (12) months after returning to India or after being confirmed his project travel. If for any reason the Employee voluntarily leaves or resigns the employment during his/ her stay overseas or within twelve (12) months after being returned to India or after being confirmed for a project travel, employee agrees to repay the amount paid by the Employer in full.

SEXUAL HARASSMENT POLICY

This policy prohibiting harassment applies to all practitioners of GyanSys.

GyanSys is committed to providing a work environment free of any intimidation or harassment which is in any way related to an individual's race, colour, religion, gender, sexual preference, genetic information, atypical hereditary cellular or blood trait, ancestry, national origin, age, marital and family status, veteran status, disabilities, or any other classification, as protected by local law.

Specifically prohibited is any type of behaviour involving verbal or physical conduct by any practitioner which harasses, disrupts, or interferes with another's work performance or which creates an intimidating, offensive or hostile work environment.

Harassment or intimidation includes, but is not limited to, slurs, epithets, threats, derogatory or objectionable conduct in the form of remarks, pictures, objects, inappropriate jokes, teasing, or any other type of conduct of a physical or verbal nature which is directed against someone due to any of the personal characteristics.

GyanSys expects that all relationships among persons in and out of the office, from the most senior Practitioner to the most junior administrative staff member, will be business-like and free of bias, prejudice and harassment.

GyanSys recognizes that its practitioners may be subjected to prohibited harassment by non-Employer practitioners who conduct business with GyanSys. In these circumstances, the Employer acknowledges its responsibility to support and assist the Practitioner subjected to such harassment.

The Employer has no requirement for the form or content of a harassment complaint, only that it be made in good faith.

The complaint may be verbal or written. It is suggested that the individual making the complaint provide as much information as possible regarding the offending incident or conduct, such as what happened or is continuing to happen, the person or persons causing the harassment, and the time(s) and place(s) the incident or conduct occurred. If available, the names of witnesses should be provided, but an individual should not hesitate to report harassment merely because there are no witnesses or because he or she cannot identify the witnesses.

The Employer is committed to prompt examination of any harassment complaint received from any of its Practitioners and will take whatever action is appropriate under the circumstances, up to and including termination of employment.

Confidentiality for all parties involved will be respected to the utmost extent possible. The Employer's policy also prohibits retaliation against individuals who in good faith have filed complaints of harassment, even if insufficient evidence is found to support the complaint.

Moreover, if an individual believes that about work for the Employer, a client or an employee or agent of a client is subjecting him or her to harassment, these same procedures to report the harassment should be followed.

Although the Employer may not have the same control over outside persons causing harassment as it does over its own personnel, the Employer will still examine the harassment complaint promptly and take whatever action is appropriate under the circumstances.

If the complaint reported found to be false then the complainant may be subject to the disciplinary action as decided by the management.

Please refer & follow the guidelines as per the Sexual Harassment Policy which is shared in the GyanSys ESS portal.

GyanSys Infotech Pvt Ltd
Human Resources

I have read and understood the above policy terms.

Signature: *Khalid Akhter*

Name: KHALID AKHTER

Date: 03/29/2020

The above policies and benefits are subject to amendments from time to time. You shall also abide by all other policies, guidelines, rules and regulations of the Employer as shall be in force, from time to time, which may be accessed on the Employer's policy database.